

(2) (a) Minor ongoing maintenance, minor remodeling, or minor modifications to the items described in subsection (1)(a) are exempt from lakeshore protection review unless the activity involves significant excavation, dredging, in-fill of material, diminishment of aquatic life, or interference with navigation or lawful recreation activities.

(b) For the purposes of subsection (2), "minor" means a change to an item described in subsection (1)(a) that is less than \$10,000 over a 5-year period, exclusive of personal services provided by the property owner or another individual at no cost to the property owner.

(3) This section may not be construed to prevent the local governing body or state from compensating a property owner to remove or alter any of the items described in subsection (1)(a) if the governing body or state believes it is in the best interests of lakeshore protection and aquatic life.

NEW SECTION. Section 2. Codification instruction. [Section 1] is intended to be codified as an integral part of Title 75, chapter 7, part 2, and the provisions of Title 75, chapter 7, part 2, apply to [section 1].

NEW SECTION. Section 3. Effective date. [This act] is effective on passage and approval.

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